

Assignor's own form of notice, Defendant Powis has not waived its right to compel the Assignor to nonbinding fee arbitration.

2. Dismissal or Stay of Action

Business and Professions Code section 6201(a) by its terms requires an attorney to serve the mandated State Bar form either prior to or at the time the summons and complaint are served, which Plaintiff concedes did not occur here. Defendant has requested dismissal of the action or alternatively, that the action be stayed pending nonbinding arbitration of the fee dispute under the MFAA. Business and Professions Code section 6201 and Rule 3.501 of the State Bar Rules make the attorney's failure to provide the State Bar mandatory notice of the client's right to arbitrate a ground for the Court to dismiss the FAC.

Case law has construed the MFAA provisions as giving the Court discretion whether to dismiss the action. (*See Richard, Watson & Gershon v. King* (1995) 39 Cal.App.4th 1176, 1179 [dismissal under § 6201 is discretionary, not mandatory, and was not warranted in that case where sophisticated client knew it had the right to arbitrate despite the lack of notice]; *Wager v. Mirzayance* (1998) 67 Cal.App.4th 1187, 1191 [trial court had discretion not to dismiss but properly exercised discretion to dismiss complaint in the absence of required notice to client of right to arbitrate]; *Law Offices of Dixon R. Howell v. Valley* (2005) 129 Cal.App.4th 1076, 1087-1088, 1090-1091 [reversing trial court order of dismissal, holding trial court abused its discretion by concluding dismissal for failure to provide the notice required by Business and Professions Code section § 6201(a) was mandatory and required as a matter of law rather than subject to the trial court's discretion].)

While it is not clear to the Court that the notice requirement of Business and Professions Code section 6201(a) is necessarily an essential element of any cause of action of the FAC, it is a prerequisite to pursuing the claim in Court that, if not fulfilled, in the Court's discretion may warrant dismissal of the action. Under the circumstances, and pursuant to the applicable statute, rules, and case law, the Court finds dismissal of the action, without prejudice, is warranted as permitted under Business and Professions Code section 6201(a) and State Bar Rule 3.501(C) in the exercise of the Court's discretion.

11. 9:00 AM CASE NUMBER: C25-00842

CASE NAME: CHRIS CARVALHO VS. POWIS PARKER, INC.

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE 1ST AMENDED COMPLAINT**

FILED BY: POWIS PARKER, INC.

TENTATIVE RULING:

Before the Court is a motion to strike portions of Plaintiff's first amended complaint and to dismiss action, or alternatively, refer the matter to State Bar non-binding fee arbitration. Based on the Court's concurrent ruling on Defendant's demurrer, the motion is **denied, without prejudice** to renewing the motion with respect to any complaint Plaintiff may re-file.